

a request for entry of default within 10 days after the time for service has elapsed. The court may issue an order to show cause why sanctions should not be imposed if the plaintiff fails to timely file the request for the entry of default.

Plaintiff has failed to timely file a request for entry of default as required by CRC 3.110(g). The Motion to Deem RFAs Admitted is **DENIED**. This matter is set for review regarding status of default on **Monday, July 13, 2026 at 9:00 a.m. in Department 64**.

SIMS VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on March 20, 2026 to Plaintiff and Counsel for failure to serve Defendant Christopher Jordan Witcher. Plaintiff has filed a Declaration in response to the OSC. Plaintiff indicates the Amended Complaint has been successfully served, and Plaintiff now needs to serve the Statement of Damages before requesting default. Plaintiff details efforts to locate and serve Defendant. Plaintiff has located him and expects to complete service soon. Today’s hearing is continued to **Monday, July 27, 2026 at 8:30 a.m. in Department 64** for further proceedings on the OSC, and **Monday, July 27, 2026 at 9:00 a.m. in Department 64** for review regarding status of service and default. No appearances are necessary on today’s calendar.

9:00 a.m. Review Hearings

BOWEN VS. ASK PETE'S CORP

CASE NUMBER: 25CV-0208122

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than December 29, 2026. Both sides have posted jury fees. The parties are ordered to appear to provide the Court with available trial dates.

EMERSON-MERTE VS. RICKS, ET AL.

CASE NUMBER: 25CV-0206896

This matter is on calendar for review regarding status of the case. Defaults have been entered as to both Defendants. No status statement has been filed. Requests for Entry of Court Judgment have been filed, but no proposed Judgment has been provided. The Court is in receipt of a May 29, 2026 letter request from Plaintiff’s counsel requesting to set a default prove-up hearing. The Court also notes that a Motion to Set Aside Default is set for July 6, 2026. An appearance is necessary on today’s calendar to discuss the status of the case and whether a default prove-up hearing should be set before or after the July 6, 2026 hearing.

FREEDOM MORTGAGE CORP. VS. THE HEIRS AND DEVICES OF MICHAEL MATOUS, DECEASED, AND ALL PERSONS CLAIMING BY, THROUGH, OR UNDER SAID DECEDENT, ET AL.

CASE NUMBER: 25CV-0207543

This matter is on calendar for review regarding status of default as to Sameul Matous as Administrator of the Estate of Michael Matous, and status of default judgment as to all Defendants. Default has been entered as to Sameul Matous. No request for entry of default judgment has been